

24CV05905 The People of The State of California v. National CPR Foundation, LLC, et al

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Motion: Motion for Summary Adjudication

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Hearing Date / Time

Wed, 06/17/2026 - 10:00

Nature of Proceedings

Motion for Summary Adjudication

Tentative Ruling

For Plaintiff The People of The State of California: Christopher B. Dalbey, Santa Barbara County District Attorney, Lauren Dossey, Riverside County District Attorney

For Defendants National CPR Foundation, LLC and Michael A. Paladino: Sean Ponist, Cary D. McReynolds, Natalie E. Ortiz, Ponist Law Group P.C.

RULING

For the reasons set forth below, Plaintiff's motion for summary adjudication is denied in its entirety.

The trial dates of 7/22/26 – 8/14/26 are confirmed – again.

Background

This action commenced on October 22, 2024, by the filing of the complaint by The People of the State of California (The People) against Defendants National CPR Foundation LLC (NCPRF) and Michael Angelo Paladino, an individual and Managing Member of NCPRF (Paladino) (Collectively, Defendants), for injunction, civil penalties, and other relief. The complaint contains causes of action for: (1) Violations of Business & Professions Code section 17500 – False or Misleading Advertising re Occupational Safety and Health Administration (OSHA) Guidelines; (2) Violations of Business & Professions Code section 17500 – False or Misleading Advertising re American Heart Association (AHA) Standards; (3) Violations of Business & Professions Code section 17500 – False or Misleading Advertising re AHA Benefits to Trainees; (4) Violations of Business & Professions Code section 17500 – False or Misleading Advertising re Accreditation; (5) Violations of Business & Professions Code section 17500 – False or Misleading Advertising re Certificate Acceptance; (6) Violations of Business & Professions Code section 17200 – Unfair Competition, False Advertising Law (FAL) Violations re OSHA Guidelines; (7) Violations of Business & Professions Code section 17200 – Unfair Competition, FAL Violations re AHA Standards; (8) Violations of Business & Professions Code section 17200 – Unfair Competition, FAL Violations re AHA Benefits to Trainees; (9) Violations of Business & Professions Code section 17200 – Unfair Competition, FAL Violations re Accreditation; (10) Violations of Business & Professions Code section 17200 – Unfair Competition, FAL Violations re Certificate Acceptance; (11) Violations of Business & Professions Code section 17200 – Unfair Competition, Advertising re OSHA Guidelines; (12) Violations of Business & Professions Code section 17200 – Unfair Competition, Advertising re AHA Standards; (13) Violations of Business & Professions Code section 17200 – Unfair Competition, Advertising re AHA Benefits to Trainees; (14) Violations of Business & Professions Code section 17200 – Unfair Competition, Advertising re Accreditation; (15) Violations of Business & Professions Code section 17200 – Unfair Competition, Advertising re Certificate Acceptance; (16) Violations of Business & Professions Code section 17500 – False or Misleading Advertising re Comparison Pricing; and (17) Violations of Business & Professions Code section 17200 – Unfair Competition, FAL Violations re Comparison Pricing.

The People essentially allege, by way of the complaint, that since at least June 27, 2019, NCPRF operated an online, computer-based certification program for cardiopulmonary resuscitation (CPR), that is entirely online and provides no in-person or hands-on training. (Compl., ¶¶ 33, 35.) Paladino has been the sole managing member of NCPRF since its inception. (Id. at ¶ 34.) The People allege numerous false and misleading representations to California consumers, such as untruthfully advertising that NCPRF adheres to or meets guidelines or standards of OSHA and AHA, is accredited, and is accepted by all employers who require employees to be CPR certified.

On November 21, 2024, Defendants filed a notice of removal of the action to the United States District Court for the Central District of California, based on federal question jurisdiction. On February 6, 2025, the District Court issued an order of remand, finding that there is no federal question jurisdiction. In doing so, the District Court noted: “Though Defendants are correct that Plaintiff, by breaking out its claims by misrepresentation rather than law, technically asserts claims based solely on misrepresentations about federal OSHA regulations, it is clear from the face of the Complaint that these misrepresentations are simply competing theories that were separated for clarity. Whether Defendants are liable for false advertising or unfair competition does not necessarily turn on the construction of federal OSHA regulations. These regulations relate to only one theory out of six.” (Feb. 6, 2025, Civil Minutes, p. 3.)

On March 17, 2025, Defendants answered the complaint, admitting some allegations and denying others.

On April 18, 2025, Defendants filed an amended answer to the complaint, admitting some allegations and denying others. Defendants also filed a request for judicial notice in support of its amended answer. On April 21, 2025, Defendants filed numerous exhibits pertaining to the request for judicial notice. Importantly, these documents were personally filed by Paladino, on behalf of himself as well as NCPRF, while he was still represented by counsel.

On April 30, 2025, Plaintiff moved to strike the original answer filed on March 17, 2025, the amended answer filed on April 18, 2025, and the request for judicial notice, as to NCPRF.

On June 11, 2025, the answer, amended answer, and request for judicial notice were stricken and Defendants were granted leave to file a further amended pleading no later than July 2, 2025.

The operative amended answer is the second amended verified answer (SAA) filed May 26, 2026. By way of the SAA, Defendants admit some allegations, deny other allegations, and assert 13 affirmative defenses.

The People now move for summary adjudication of eight of the 17 causes of action and nine of the 13 affirmative defenses.

Defendants oppose the motion.

Analysis

Standard on Summary Adjudication

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more Defendants either owed or did not owe a duty to the Plaintiff or Plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

“A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment.” (Code Civ. Proc., § 437c, subd. (f)(2).)

“The motion shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken.” (Code Civ. Proc., § 437c, subd. (b)(1).)

“A party may move for summary judgment or, in the alternative, summary adjudication of specific claims. (Code Civ. Proc. § 437c, subds. (f)(1) & (2), (t)(5).) A motion for summary adjudication “ ‘proceed[s] in all procedural respects as a motion for summary judgment.’ ” (Code Civ. Proc. 437c, subd. (t)(5).) The moving party “ ‘bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if [the movant] carries [this] burden of production,’ ” the burden of production shifts to the opposing party “ ‘to make a prima facie showing of the existence of a triable issue of material fact.’ ” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, 107 Cal.Rptr.2d 841, 24 P.3d 493 (Aguilar).)

In determining whether the parties have met their respective burdens, “ ‘the Court must ‘ ‘consider all of the evidence’ ” and “ ‘all’ ” of the “ ‘inferences’ ” reasonably drawn therefrom [citation], and must view such evidence [citations] and such inferences [citations], in the light most favorable to the opposing party.’ ” (Aguilar, supra, 25 Cal.4th at p. 843.) “ ‘There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.’ ” (Id. at p. 850, 107 Cal.Rptr.2d 841, 24 P.3d 493, fn. omitted.)” (Choochagi v. Barracuda Networks, Inc. (2020) 60 Cal.App.5th 444, 453.)

In resolving the motion, the Court may not weigh the evidence. (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.) Rather, the role of the trial Court in resolving a summary judgment motion is to determine whether issues of fact exist, not to decide the merits of the issues. A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.

(Aguilar v. Atlantic Richfield, supra, 25 Cal.4th at p. 850.) “Any doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the motion.” (Molko v. Holy Spirit Assn. (1988) 46 Cal.3d 1092, 1107.)

Separate Statement

“Code of Civil Procedure section 437c, subdivision (b)(1), requires each motion for summary judgment to be accompanied by a separate statement “ ‘setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence.’ ” California Rules of Court, rule 3.1350(d)(2)4 states: “ ‘The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion.’ ” Under the Rules of Court, “ ‘Material facts’ ” are facts that relate to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion and that could make a difference in the disposition of the motion.’ ” (Rule 3.1350(a)(2).) (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 874-875.)

“The point of the separate statement is not to craft a narrative, but to be a concise list of the material facts and the evidence that supports them. “ ‘The separate statement serves two important functions in a summary judgment proceeding: It notifies the parties which material facts are at issue, and it provides a convenient and expeditious vehicle permitting the trial Court to hone in on the truly disputed facts.’ ” [Citation.]” (Beltran v. Hard Rock Hotel Licensing, Inc., supra, 97 Cal.App.5th at page 875.)

“The duty to comply with the law regarding separate statements applies to both sides of a motion for summary judgment or adjudication. The opposing party’s responses to the separate statement must be in good faith, responsive, and material. Responses should directly address the fact stated, and if that fact is not in dispute, the opposing party must so admit. It is completely unhelpful to evade the stated fact in an attempt to create a dispute where none exists.” (Beltran v. Hard Rock Hotel Licensing, Inc., supra, 97 Cal.App.5th at page 875.)

“Separate statements serve a laudable purpose. As explained in Weil & Brown, California Practice Guide (The Rutter Group 1996) Civil Procedure Before Trial, paragraph 10:94.1, pp. 10–31, 10–32, these documents are ‘intended to permit the judge to determine quickly whether the motion is supported by sufficient undisputed facts. If the opposing statement disputes an essential fact alleged in support of the motion, the judge merely has to review the evidence cited in support of that fact. This saves the judge from having to review all the evidentiary materials filed in support of and in opposition to the motion.’ ” (Kulesa v. Castleberry (1996) 47 Cal.App.4th 103, 113.)

“The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the Court’s discretion, for granting the motion.” (Code Civ. Proc., § 437c, subd. (b)(3).)

“In motions for summary judgment or adjudication, “ ‘all material facts must be set forth in the separate statement. “ ‘This is the Golden Rule of Summary Adjudication: if it is not set forth in the separate statement, it does not exist.’ ” [Citation.] Thus, when the ‘fact’ ’ is not mentioned in the separate statement, it is irrelevant that such fact might be buried in the mound of paperwork filed with the Court, because the statutory purposes are not furthered by unhighlighted facts.’ ” [Citation.] “ ‘The corollary for an opposing party, unless it wishes to advance additional disputed or undisputed material facts, is that it clearly indicate which of the facts contained in the moving party’s separate statement it disputes. ([Code Civ. Proc.] § 437c, subd. (b)(3).) Each party also must supply a ‘reference to the supporting evidence’ ’ in its separate statement ([Code Civ. Proc.] § 437c, subd. (b)(1), (3)).’ ” [Citation.]” (Los Angeles Unified School Dist. v. Torres Construction Corp. (2020) 57 Cal.App.5th 480, 492-493.)

The People have set forth 60 “facts” that they contend are undisputed (UMFs).

In opposition, Defendants admit some facts, dispute some facts, and claim that some of the UMFs are not material facts. Many of the “disputed” facts are not reasonably disputed. For example, Defendants dispute several UMFs that have to do with testimony that was given by Paladino. The supporting evidence clearly shows that the testimony attributed to Paladino was in fact his testimony. Likewise, information contained in properly authenticated OSHA documents is not reasonably disputed. Defendants’ efforts to create disputes where none exist are unhelpful and has resulted in the Court spending an inordinate amount of its limited time and resources determining what is reasonably disputed and what is not.

Additionally, Defendants set forth additional facts (DUMFs) that they contend establish triable issues as to each of the causes of action. These are set forth as DUMFs Nos. 61 - 91.

Issue No. 1: False Advertising by NCPRF

The Peoples’ first substantive argument is that NCPRF is liable under the first cause of action for violating the false advertising law (FAL) by advertising that its CPR courses strictly adhere to the Occupational Safety and Health Administration (OSHA) regulations, which NCPRF knew, or should have known, was untrue or misleading.

“It is unlawful for any person, firm, corporation or association, or any employee thereof with intent directly or indirectly to dispose of real or personal property or to perform services, professional or otherwise, or anything of any nature whatsoever or to induce the public to enter into any obligation relating thereto, to make or disseminate or cause to be made or disseminated before the public in this state, or to make or disseminate or cause to be made or disseminated from this state before the public in any state, in any newspaper or other publication, or any advertising device, or by public outcry or proclamation, or in any other manner or means whatever, including over the Internet, any statement, concerning that real or personal property or those services, professional or otherwise, or concerning any circumstance or matter of fact connected with the proposed performance or disposition thereof, which is untrue or misleading, and which is known, or which by the exercise of reasonable care should be known, to be untrue or misleading, or for any person, firm, or corporation to so make or disseminate or cause to be so made or disseminated any such statement as part of a plan or scheme with the intent not to sell that personal property or those services, professional or otherwise, so advertised at the price stated therein, or as so advertised. Any violation of the provisions of this section is a misdemeanor punishable by imprisonment in the county jail not exceeding six months, or by a fine not exceeding two thousand five hundred dollars (\$2,500), or by both that imprisonment and fine.” (Bus. & Prof. Code, § 17500, italics added.)

Referencing UMFs 2-5 and 8-9, the People argue: “At least once between October 23, 2020, and October 22, 2024, NCPRF advertised online that ‘[NCPRF] strictly adheres to the [OSHA] guidelines’, ‘Online Certification Courses Strictly Adhere to OSHA!’ and ‘Courses Strictly Adhere to OSHA!’ ” (Motion, p. 5, l. 26 - p. 6, l. 2.) The People further argue that NCPRF has admitted that since October 23, 2020, it has not offered any in-person training, and its CPR training has been entirely online.

Defendants contend that it is disputed whether OSHA regulations and guidelines require hands-on training. The Court agrees. Based on the admissible evidence before it, the Court recognizes that some of the regulations referred to state that trainees “should” (not mandatory language) develop hands on skills (e.g., UMF Nos. 15 - 17), there is other evidence suggesting that hands-on training is not a violation (e.g., DUMF Nos. 73, 74).

The Court finds that there are triable issues of material fact regarding whether NCPRF made untrue or misleading statements regarding strict adherence to OSHA guidelines, or, if NCPRF did make untrue or misleading statements, whether it knew or by the exercise of reasonable care should have known that the statements were untrue or misleading.

Issue No. 2: False Advertising by Paladino

The State argues that Paladino is liable under the first cause of action for violating the FAL by advertising that NCPRF’s CPR courses strictly adhere to OSHA, which he knew, or by which by the exercise of reasonable care should have known, was untrue or misleading.

There are triable issues of material fact regarding issue No. 2 for the same reasons as there are triable issues of material fact as to issue No. 1.

Issues No 3 and 4: Sixth Cause of Action for Violating the Unfair Competition Law (UCL) by Violating the FAL as set forth in the First Cause of Action

The People argue that NCPRF is liable under the sixth cause of action because any violation of the FAL necessarily violates the UCL. The argument is premised on the People prevailing on their motion for summary adjudication of the first two issues. Because they did not prevail, there are triable issues of material fact for the same reasons as issues No. 1 and 2.

Issues No. 5 and 6: Twelfth Cause of Action for Violating the UCL by Untruly or Misleadingly Advertising that its CPR Courses Strictly Adhere to OSHA

The People argue that Defendants are liable for violating the UCL by advertising strict adherence to OSHA. The argument is the same as for the above issues, and there are triable issues of material fact for the same reasons.

Issues No. 7 and 8: Fifth Cause of Action for Violating the FAL by Advertising that its CPR Certificates are Accepted by all Employers

The People argue that Defendants are liable under the fifth cause of action for violating the FAL by advertising that its CPR certificates are accepted by all employers, which Defendants knew, or which by the exercise of reasonable care should have known, was untrue or misleading.

In support of the motion, the People reference several UMFs. It is undisputed that the NCPRF stated: "All of National CPRFoundation's certifications are accredited and are nationally and internationally accepted. If, for whatever reason, the student's certification is rejected we will issue a full refund - as long as the certification has been denied thereby, the student's Employer, Institution or Licensing Agency within 30 days." (UMF No. 23.)

The People, by their interpretation of this statement, conflate the issues of the certifications being nationally and internationally accepted by some businesses, and the issue of all individual employers accepting the certifications. At the very least, there is a triable issue as to what is meant by the statement.

Further showing that there are triable issues as to whether the statement, and others contained on the CPRF website, is false or misleading, is the reference to a refund if the certification is rejected. In California, and other states: " 'Plaintiffs must demonstrate " 'more than a mere possibility that [the seller's] label might conceivably be misunderstood by some few consumers viewing it in an unreasonable manner . . . [r]ather, the reasonable consumer standard requires a probability that a significant portion of the general consuming public or of targeted consumers, acting reasonably in the circumstances, could be misled.' " [Citation.] " (Moore v. Trader Joe's Company (9th Cir. 2021) 4 F.4th 874, 882.) Here, the People have provided no evidence that there is a probability that a significant portion of the public could be misled.

Issues No. 9 and 10: Tenth Cause of Action for Violating the FAL as set forth in the fifth cause of action.

The People argue that Defendants are liable under the tenth cause of action by virtue of them being liable under the fifth cause of action discussed above. Because they did not prevail on their motion with respect to the fifth cause of action, there are triable issues of material fact for the same reasons.

Issues No. 11 and 12: Fifteenth Cause of Action for Violating the UCL by Untruly or Misleadingly Advertising that its CPR Certificates are Accepted by all Employers

The People's argument with respect to these issues is the same as it was with respect to the fifth cause of action and fails for the same reasons discussed therein.

Issues No. 13 and 14: Sixteenth Cause of Action for Violating the FAL by Advertising Comparison/"Strikethrough Pricing, which Defendants Knew, or which by the Exercise of Reasonable Care Should Have Known, was Untrue or Misleading

The People argue that Defendants' "strikethrough pricing" violated the FAL on the following bases:

"(1) the strikethrough price represents a former price that was not charged in the prior 90 days, in violation of Business and Professions Code section 17501, a provision of the False Advertising Law; (2) the pricing specified expiration dates for the lower price, but it never actually expired; the actual price charged was always the lower price; and (3) the pricing implied that the course had a true value higher than the price actually charged and that the struck-through price is actually the prevailing price that other customers pay, but no other customers ever paid the higher, struck-through price." (Motion, p. 12, ll. 17-23.)

"No price shall be advertised as a former price of any advertised thing, unless the alleged former price was the prevailing market price as above defined within three months next immediately preceding the publication of the advertisement or unless the date when the alleged former price did prevail is clearly, exactly and conspicuously stated in the advertisement." (Bus. & Prof. Code, § 17501, italics added.)

Here, the People have provided admissible evidence that:

"On December 14, 2022, NCPRF advertised on its website that its " 'Standard-CPR/AED' " course was " 'Only \$12.95' " with a strikethrough price of " '18.95' " in red text, and with the statement that " 'Offer Expires: 12/16/2022' ": . . ." (UMF No. 46.)

"The offer for \$12.95 for the " 'Standard-CPR/AED' " course made on the NCPRF website on December 14, 2022, never actually expired." (UMF No. 47.)

"On May 23, 2024, NCPRF advertised on its website that its " 'Standard-CPR/AED'

course was " 'Only \$12.95' " with a strikethrough price of " '18.95' " in red text." (UMF No. 48.)

"When asked to describe its strategy and policy for pricing its CPR training courses, including how it determines " 'the price to charge, shown on [NCPRF's] website in black text (e.g., \$12.95) and the comparison price, shown on [NCPRF's] website in red and with strikethrough text (e.g., \$18.95)' ", Defendants stated: " 'When setting prices and managing a website for NCPRF, Responding Party researches general industry pricing and sets prices for NCPRF at a rate Responding Party deems to be competitive with the industry average price for value. The stricken through price[s] are generally prices charged by others in the industry, but may also be prior prices charged by NCPRF.' " (UMF No. 49.)

"No consumer paid \$18.95 for NCPRF's " 'Standard-CPR/AED' " course during the

period of October 23, 2020, to June 13, 2025, but at least one consumer paid \$18.95 before October 23, 2020." (UMF No. 50.)

"NCPRF last charged \$18.95 for its " 'Standard-CPR/AED' " course sometime in 2013 or 2014." (UMF No. 51.)

"Sometime in 2014 or 2015, NCPRF lowered the price of its " 'Standard-CPR/AED' " to \$12.95 and has been charging \$12.95 since then." (UMF No. 52.)

"[T]he prohibition [of false strikethrough advertising] refers to the definition of an advertised item's prevailing market price stated in the standard, that is, "the prevailing market price . . . at the time of publication of such advertisement in the locality wherein the advertisement is published. (§ 17501, italics added.) Accordingly, if the phrase " 'prevailing market price' " generally meant the price set by the retailer responsible for the advertisement -- that is, the retailer's own price -- the italicized phrase would be superfluous to the definition of " 'prevailing market price.' " Indeed, had the Legislature intended the phrase to refer to the price offered by the business responsible for the advertisement, it could easily have done so, and omitted the use of the terms " 'market' " and " 'prevailing market price.' " [Citation.]" (People v. Superior Court (J.C. Penney Corp., Inc.) (2019) 34 Cal.App.5th 376, 397.) "In so concluding, we do not reject the possibility that under the statute, as properly construed, a retailer's own former price for a good may sometimes constitute the requisite former market price. As explained further below . . . , that situation potentially occurs when the good in question is an " 'in-house' " item sold only by the retailer, as the retailer's price for such a good could be determined to be the " 'prevailing' " price at which it is sold, upon an adequate factual showing." (Id at p. 397, fn. 13.)

Here, although the People provide some evidence and argument regarding the unique nature of the program provided by Defendants, they fail to provide evidence that the strikethrough price inaccurately represented the prevailing market rate. Even assuming that the Defendants do have a unique business, there is no evidence provided that indicates the People are incapable of providing some evidence of a reasonable prevailing market rate. The People have failed to meet their burden, and the burden does not shift to Defendants to show that the strikethrough price is consistent with the prevailing market rate. There are triable issues of material fact that preclude summary adjudication of the sixteenth cause of action.

Issues No. 15 and 16: Liability Under the Seventeenth COA for Violating the UCL by Violating the FAL as set Forth in the Sixteenth Cause of Action

The People argue that Defendants are liable under the seventeenth cause of action by virtue of them being liable under the sixteenth cause of action discussed above. Because they did not prevail on their motion with respect to the sixteenth cause of action, there are triable issues of material fact for the same reasons.

Affirmative Defenses

The People move for summary adjudication of Defendants' second, third, fifth, sixth, seventh, eighth, ninth, tenth, and twelfth affirmative defenses.

By way of the People's SUMFs, the People do not comply with the formatting requirements of a separate statement and simply state as to each of the affirmative defenses: "Defendants' [number] Affirmative Defense [defense stated] is Meritless Because it Is Inapplicable as a Matter of Law to this Law Enforcement Action."

"The motion shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken. The supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the Court's discretion constitute a sufficient ground for denying the motion." (Code Civ. Proc., § 437c, subd. (b)(1).)

"The separate statement must be in the two-column format specified in (h). The statement must state in numerical sequence the undisputed material facts in the first column followed by the evidence that establishes those undisputed facts in that same column. Citation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers." (Cal. Rules of Court, rule 3.1350(d)(3).)

In addition to not being in the proper two-column format, the SUMFs do not reference any evidence or even cite to any statutes, cases, or other legal authorities.

“Separate statements in particular “ ‘are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial Courts to expeditiously review complex motions for [summary adjudication] and summary judgment to determine quickly and efficiently whether material facts are disputed.’ ” [Citation.] “ ‘The due process aspect of the separate statement requirement is self-evident-to inform the opposing party of the evidence to be disputed to defeat the motion.’ ” [Citation.]” (Zimmerman, Rosenfeld, Gersh & Leeds LLP v. Larson (2005) 131 Cal.App.4th 1466, 1477.)

The People’s motion for summary adjudication of the affirmative defenses will be denied. By so ruling, the Court makes no determination regarding the validity of the defenses.

Objections to Evidence

Defendants object to several evidentiary items submitted by the People and also move to strike material facts from the People’s UMFs.

“In granting or denying a motion for summary judgment or summary adjudication, the Court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.” (Code Civ. Proc., § 437c, subd. (q).)

Defendants’ objections to evidence and “motion to strike material facts from the separate statement of undisputed material facts” are all without merit and are overruled.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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